

could not be imposed if there was reasonable doubt as to whether the infringement had occurred.

4.3.7 Receipt of formal documents

See chapter III.S.4. "Spheres of risk and apportioning the burden of proof" and Administrative Council decision CA/D 6/14 dated 15 October 2014 (entry into force: 1 April 2015) amending R. 2, 124, 125, 126, 127, 129, 133 and 134 EPC (OJ 2015, A17; explanatory notice: OJ 2015, A36), discussed in the chapter on notification (R. 126(1) EPC was further amended by Administrative Council decision CA/D 2/19). With respect to the burden of proving receipt, see also chapter III.G.5.1.2 f) below.

The respondent (opponent) in T 1/12 argued that the boards' case law on the applicable standard of proof for proving receipt of documents by the EPO was contradictory. In that context, it cited T 1200/01, which suggested a balance of probabilities, and T 2454/11, which held that a stricter standard of proof was needed to convince the board. This prompted the opponent to draft points of law for referral. The board, however, refused its request for a referral, in particular because according to the principle of free evaluation of the evidence, that evaluation had to be done on a case-specific basis. The standard of proof that the balance of probabilities needed to reach to convince the board was thus left to the discretion of the board itself. The board found no clear contraction between T 1200/01 and T 2454/11. It dealt with the matter of the standard of proof in combination with, in particular, the principle established in the case law of free evaluation of the evidence.

The issue under appeal in T 1200/01 was whether an opposition of the appellant against the patent could be deemed to have been filed. According to Art. 99(1), last sentence, EPC, this was only the case if the opposition fee had been paid within the opposition period. However, in the case at issue no trace of a notice of opposition nor of a voucher for payment of the opposition fee allegedly filed by the appellant had been found within the EPO. The board noted that, concerning the standard of proof to be applied for establishing the receipt of documents not found within the EPO, it was the established case law of the boards of appeal that, even if proof to this effect could seldom lead to absolute certainty, it at least had to show to a **high degree of probability** that the alleged filing had taken place (see also T 128/87, OJ 1989, 406, cited by the board). It also noted that in some previous cases (see T 243/86 and T 69/86, cited by the board) it had been accepted that this standard was met if there were concrete traces of the item sought which, even if they did not show it for certain, indicated a high probability of the lost document having once been in the EPO. Nevertheless, any other means of giving evidence, such as witness testimony, could equally be considered in this context.

The communication noting the loss of rights under R. 112(1) EPC (former R. 69(1) EPC 1973) is deemed to have been delivered to the addressee on the tenth day following its posting, unless the letter failed to reach the addressee or reached him at a later date. In the event of any dispute, it is incumbent on the EPO to establish that the letter reached its destination (R. 126(2) EPC; CA/D 6/14 for the revised wording; former R. 78(2) EPC 1973). In J 9/05 and J 18/05, the only evidence provided by the examining division was a letter from the Deutsche Post referring to the information received from the

foreign postal service, according to which the letter had been delivered to an authorised recipient, who, however, was not specified. The board stated that the probative value of the submissions and evidence of the appellant had to be balanced against the probative value of evidence established by the EPO. Balancing the evidence of the examining division, which consisted of the rather vague letter from the Deutsche Post, against the evidence submitted by the appellant, and taking into account the serious consequences for the appellant, the board came to the conclusion that it had not been sufficiently proven that the applicant had received the R. 69(1) EPC communication. In such a situation, where the EPO bore the burden of proof, the applicant had to be given the benefit of the doubt.

In T 529/09 a communication pursuant to R. 82(3) EPC (invitation to parties to file observations with regard to the maintenance of patent in amended form) had been sent out on 8 September 2008 by registered letter addressed to the proprietor's representative. According to R. 126(2) EPC (see CA/D 6/14 for the revised wording) a registered letter was deemed to have been delivered to the addressee on the tenth day following its posting, unless it had failed to reach the addressee or reached him at a later date. In the board's view, "delivered to the addressee" did not mean that the notification in question had to be brought to the attention of the professional representative in person. It sufficed that the registered letter had been received by a person authorised to take delivery, e.g. an employee of the representative's office (see T 743/05). In the present case, the board regarded the evidence on file as sufficiently reliable and complete to prove the proper delivery of the letter. In this respect, the board highlighted a significant difference between this case and J 9/05 and J 18/05, in which the appellant had filed a considerable amount of counter-evidence pointing out specific reasons why the letter might not have been received by the representative's office.

In T 1934/16, since the appellant denied having received the communication under R. 82(3) EPC, the EPO had to establish that it reached its destination and the date on which it was delivered (R. 126(2) EPC). The result of the enquiry initiated by the board proved that the registered letter reached its destination and, as the appellant did not submit substantiated details that were apt to demonstrate a different course of events, no doubt existed that the letter was duly received by the appellant's representative.

The inter partes decision T 1587/17 deals in detail with the standard of proof required to establish that a **notice of appeal** has been filed, with particular reference to T 2454/11 and T 1200/01. The board decided that, in view of the evidence on file, the appellant had discharged its burden of proof and the respondent had not succeeded in raising doubts that were serious enough.

See also J 10/04, reported above, which differed from the "ordinary" cases concerning lost mail in that the application had reached the USPTO and only some of the papers were missing, and T 1535/10, in which the board found that responsibility for obstacles and delays in receiving decisions having to be notified under R. 126(1) EPC had to be assigned according to spheres of risk (see chapter III.S.4. "Spheres of risk and apportioning the burden of proof").

5. Burden of proof

5.1. Apportioning the burden of proof

5.1.1 General

In the absence of relevant EPC provisions, the principles concerning the allocation of the burden of proof have been developed through the case law of the boards of appeal. **Each party bears the burden of proof for the facts it alleges.** At all events, a party cannot deny facts which related to its own actions or were the subject of its own perceptions on the ground of "ignorance", if the presentation of the facts in question is essentially the party's responsibility (T 247/98).

T 2037/18 concerned whether an opposition had met the requirements for "adequate substantiation" and thus been admissible and, in particular, whether the opponent, which had alleged a prior use, should have substantiated an asserted lack of a non-disclosure clause. Addressing in detail the burden of proof and the burden of presentation, the board held that in most legal systems and in proceedings before the EPO (beyond the area open to examination by the EPO of its own motion), the burden of presentation and the burden of proof were allocated such that each party had to present and prove the facts that were favourable to them, i.e. the facts that supported their own assertions (T 219/83, T 270/90). The principle of "*negativa non sunt probanda*", also recognised in the boards' case law (see R 15/11, R 4/17), was a clear expression of this allocation of the burden of proof. In other words, a party to the proceedings was not required to prove a negative fact. As a general rule, the burden of presentation followed the burden of proof.

In T 1201/14 (transfer of right of priority), as regards the applicable rules for assessing the evidence adduced (affidavits), the board concluded the following: the burden of proving a valid transfer of the right of priority lay with the patent proprietor (appellant) since it was the one claiming that right (see e.g. T 1008/96, point 3.3 of the Reasons; T 1056/01, point 2.10 of the Reasons; T 493/06, point 8 of the Reasons; T 205/14, point 3.5 of the Reasons). This rule was all the more applicable taking into account that the patent proprietor (appellant) alone had access to the relevant evidence when it asserted a concluded transfer of rights.

In **ex parte proceedings** the applicant bears the burden of proof for the facts in his favour, e.g. the fact that a document cited by the examining division does not form part of the state of the art (T 160/92, OJ 1995, 35), the fact that the conditions laid down in Art. 123 EPC have been met (T 383/88) or the fact that a limitation of the claims is admissible (T 2/81, OJ 1982, 394). Sufficient disclosure also obliges the applicant to provide evidence of the skilled person's relevant knowledge if there is reason to believe it may not cover all the subject-matter claimed. If reasonable doubts exist about the scope or public nature of the specialist knowledge required for adequate disclosure of the invention, the applicant discharges his duty to disclose by submitting suitable evidence in support of the facts in his favour, in order to fulfil his duty to disclose the invention (T 82/07). In T 32/95, the board referred to a passage from the Guidelines (now G-IV, 1 "State of the art" – March 2022 version, which is cited in full in connection with T 750/94, under chapter III.G.4.3.1 above).

As far as issues relating to patentability requirements are concerned, the burden of proof in **examination proceedings** cannot lie initially with the applicant. If an examining division raises an objection, it must be appropriately substantiated. In T 578/06 the examining division had failed to provide such substantiation. Also, the passage in the "Case Law of the Boards of Appeal of the EPO" (see paragraph immediately above) could not support its view that in ex parte proceedings the applicant has the burden of proof for facts in his favour, as it appeared to have been taken out of its context. In this respect, the board clarified that all the procedural situations referred to in this passage were those where, in response to a substantiated objection from the examining division, the applicant was required to support its contention.

It is not sufficient in **opposition proceedings** for the opponent to impugn a granted patent with an assertion which cannot be substantiated. And if the EPO is unable to establish the facts of its own motion, the proprietor is given the benefit of the doubt (T 219/83, OJ 1986, 211, 328; see also T 293/87 and T 459/87). According to T 200/94 (following established case law), if a board's investigation does not enable it to verify beyond reasonable doubt the facts alleged, this goes to the detriment of the party needing to prove them, i.e. the party who relies on these facts. In **appeal proceedings**, the party's status as opponent makes no difference when it comes to assigning the burden of proof (this follows also from T 740/90, T 270/90, OJ 1993, 725 and T 381/87, OJ 1990, 213). Parties to proceedings bear separate burdens of proving the facts they allege, and if a fact that is material to the decision is not proven, then the decision goes against the party that failed to discharge that burden. In T 1469/08, the appellant (opponent), who was alleging prior use, argued that all the prostheses in question, whatever their article code and batch of manufacture, had the same structure as the one submitted as evidence to the EPO, but failed to provide any evidence to support that (the board cited T 270/90, OJ 1993, 725, point 2.1 of the Reasons; T 355/97, point 2.5 of the Reasons).

In T 998/04 the board emphasised as an obiter dictum that the burden of proof for alleged lack of patentability lay with the opponent and could not be dispensed with by requesting the board to carry out its own investigations, in particular, by summoning four named witnesses, by commissioning an **independent expert** to carry out experimental tests and by allowing individuals from the appellant company to attend any tests and to question witnesses or experts. Moreover, granting these requests would not be consistent with the character of the post-grant opposition proceedings under the EPC which were in principle to be considered as contentious proceedings between parties normally representing opposite interests, who should be given equally fair treatment (see G 9/91, OJ 1993, 408, point 2 of the Reasons). If the opponent disputes the existence of novelty, an inventive step or the reproducibility of the invention, it bears the burden of proof in this respect at first and second instance (e.g. T 762/04; T 382/93; T 16/87, OJ 1992, 212; T 182/89, OJ 1991, 391). In case of uncertainty about a prior-art disclosure, the patentee should be given the benefit of the doubt (T 1003/96; see also T 230/92, T 345/86, T 601/91 and T 968/91).

A technical problem set out in a patent is considered to be credibly solved by a claimed invention if there are no reasons to assume the contrary. Under such circumstances, the burden is normally on the opponent to prove the opposite or at least provide evidence

casting doubt on the alleged solution of the problem. If the opponent succeeds, the burden of proof shifts to the patent proprietor who must then prove its assertions (see e.g. T.1797/09). Where, however, the opponent succeeds in casting serious doubt on the persuasiveness of the patentee's evidence merely by arguing that this evidence was subject to **erroneous evaluation** by the examining division, this allegation may render the patentee's evidence inappropriate but cannot justify the conclusion that the invention fails to solve the existing technical problem. Such allegation does not discharge the opponent from the burden of submitting convincing counter-evidence that the claimed subject-matter cannot solve the technical problem (T.596/99).

The appellant relied upon experimental reports. However, these tests did not prove its allegations beyond all reasonable doubt. The proprietor (appellant) submitted that the burden of proof lay with the respondents (opponents) to show that the amendments did in fact extend the protection conferred (Art.123(3) EPC). However, it was the proprietor (appellant), who had amended the patent as granted and who was responsible for demonstrating, beyond all reasonable doubt, that said amendment did not extend the protection conferred (T.2285/09).

Reversely, the patentee cannot relieve itself of the burden of providing **counter-evidence** for facts it alleges by simply stating that all the evidence was within the power of its opponent (with reference to T.472/92, OJ 1998, 161;), without providing proof for the contention that it is not within its power to obtain counter-evidence (T.254/98). As far as apportioning the burden of proof is concerned, it is irrelevant whether or not the patentee can access the requisite evidence more easily than the opponent (T.1162/07; see also T.1710/12).

5.1.2 Individual cases

a) Novelty

For the purpose of assessing novelty, the party alleging that the inevitable outcome of a prior art disclosure is in contradiction with the explicit disclosure of the cited prior art has not only the burden of reproducing the earlier disclosure in such a way as to demonstrate that the alleged inevitable outcome has occurred, but also the burden of proving convincingly that if any significant deviation from the conditions specified in the earlier disclosure are not material to the outcome (T.204/00; see also T.396/89).

In T.713/01 the appellant denied the existence of an "enabling" disclosure in D2 with regard to the preparation of polymers in the presence of a solubilised lithium pyrrolidide initiator by reference to T.124/87 (OJ 1989, 491) and T.206/83 (OJ 1987, 5). The board held that the only difference between D2 and the claim wording did not qualify as a distinguishing feature of the claimed product because that **"product-by-process" feature** was not detectable on the product by a reliably distinguishing property. In this context, the board added that in proceedings before the examining division the burden of proof for an allegedly distinguishing "product-by-process" feature lay with the applicant (see further T.205/83, OJ 1985, 363 and T.279/84). Decision T.713/01 was clearly concerned with the question of burden of proof in examination proceedings (T.1912/10).